

4-959. Notice of completion of briefing; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

participant/case info review zone

STATE OF NEW MEXICO

COUNTY OF _____
_____ JUDICIAL DISTRICT COURT

In re _____, Petitioner. No.

NOTICE OF COMPLETION OF BRIEFING

(for use with petitions filed under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction))

Petitioner hereby notifies the Court, in accordance with Rule 1-077.1(H) NMRA, that briefing is complete as to Petitioner's Petition to Expungement Arrest Records and Public Records and that the Petition is ready for decision. Petitioner further states:

☐ Notice of the Petition has been provided via first-class United States mail to:

- ☐ The District Attorney in the _____ Judicial District;
- ☐ The New Mexico Department of Public Safety.

☐ At least sixty-three (63) days have passed since Petitioner mailed the Petition to the parties entitled to notice.

☐ The District Attorney:

- ☐ Has filed a Notice of Non-Objection; or
- ☐ Has filed an objection.

☐ The New Mexico Department of Public Safety:

- ☐ Has filed a Notice of Non-Objection; or
- ☐ Has filed an objection.

☐ Petitioner has included an Affirmation in Support of Expungement (Form 4-960.2 NMRA) with this Notice of Completion of Briefing.

Printed name of Petitioner

Signature of Petitioner

signature/date review zone

Mailing Address

Telephone Number

Date

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Attorney Name (*if applicable*)

Attorney Signature

Mailing Address

Telephone Number

Email

CERTIFICATE OF SERVICE

I hereby certify that on this _____ day of _____, _____ this Notice of Completion of Briefing was served by United States first class mail on the following:

(The District Attorney in the _____ Judicial District)

(Address)

(Telephone)

AND

New Mexico Department of Public Safety
P.O. Box 1628, Santa Fe, New Mexico, 87504-1628
(505) _____

Signature of person sending paper

Date of signature

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

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